

24VECV06484 24VECV06484

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-02

Motion: DEFENDANT'S MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION OF ISSUES IN THE FIRST AMENDED COMPLAINT

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Case Number: 24VECV06484 Hearing Date: July 2, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TERESA MERCADO, an individual; and ALFONSO

MERCADO, an individual,

Plaintiffs,

vs.

KIA AMERICA, INC., a California corporation;

and DOES 1-10, inclusive,

Defendants.

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CASE NO: 24VECV06484

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION
FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION OF ISSUES IN
THE FIRST AMENDED COMPLAINT

Dept. U

8:30 a.m.

July 2, 2026

I.

BACKGROUND

This case is a lemon law action.

On December 26, 2024, Plaintiffs

Teresa Mercado ("Teresa") and Alfonso Mercado ("Alfonso") filed their complaint
against Defendant Kia America, Inc., alleging: (1) breach of express warranty
in violation of the Song-Beverly Act; and (2) breach
of implied warranty in violation of the Song-Beverly Act.

On March 17, 2025, the Court sustained, with leave to amend,

Defendant's demurrer to the complaint.

On March 27, 2025, Plaintiffs filed their first amended complaint (the "FAC") against Defendant, alleging: (1) breach of express warranty in violation of the Song-Beverly Act; and (2) breach of implied warranty in violation of the Song-Beverly Act.

On April 23, 2025, Defendant filed its answer to the FAC.

On April 7, 2026, Defendant filed its motion for summary judgment or, alternatively, for summary adjudication as to both causes of action in the FAC.

On June 12, 2026, Plaintiffs filed their opposition brief.

On June 22, 2026, Defendant filed its reply brief.

II.

LEGAL

STANDARD

The purpose of a motion for summary judgment "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c (c). A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of its cause of action. Code Civ. Proc., § 437c (p); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519. The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue. *Ibid.*

Courts "liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party." *Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389. However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary judgment as a

matter of law. Code Civ. Proc., § 437c (c); Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.

III.

RULINGS

ON EVIDENCE

Both sides object to evidence submitted by the other side in support of / in opposition to the motion.

For purposes of the instant motion for summary judgment, both sides' objections are overruled. See Reid v. Google, Inc. (2010) 50 Cal.4th 512, 531-533 (written evidentiary objections made before hearing avoid waiver regardless of trial court determination as to admissibility of evidence subject to said objections). The Court likewise rejects Plaintiffs' request that the Court strike portions of Defendant's memorandum.

IV.

DISCUSSION

Defendant moves for summary judgment or, alternatively, for summary adjudication as to both causes of action in the FAC: (1) breach of express warranty in violation of the Song-Beverly Act; and (2) breach of implied warranty in violation of the Song-Beverly Act.

For the reasons discussed below, the motion is denied.

a.

Defendant's Submitted Evidence

Defendant

submits the following evidence in support of its motion:

- The declaration of Kyran Johal, Defendant's Escalated Case Administrator Manager;
- The

declaration of Jeff Richards, Defendant's outside consultant;

- The

declaration of David Fernandez, counsel for Defendant;

- The

declaration of Alexander Alarcon, counsel for Defendant;

- Excerpts

from Teresa's deposition transcript (Motion, Exh. A);

- Copies

of Alfonso's discovery responses (Motion, Exh. B);

- Copies

of emails between counsel (Reply, Exhs. A, C-E); and

- A

copy of the Court's order ruling on Defendant's ex parte application to continue trial (Reply, Exh. B).

Defendant's

submitted evidence shows that on July 14, 2023, Plaintiffs purchased a 2024 Kia Seltos (VIN #KNDER2AA3R7504769) from Van Nuys Kia with 25 miles on the odometer for \$27,685.00, plus tax, license, fees, and optional service contracts. (SUMF #1.)

Plaintiffs

presented the vehicle to Van Nuys Kia on December 19, 2023, reporting two (2) illuminated dashboard warning lights for backup collision and blind spot sensors. A technician found no loose connections or damaged pins, applied a stabilant to connector ICU-A on the fuse box and deactivated the dash lights. The vehicle was verified as operating as intended, and Plaintiffs paid nothing out of pocket. (SUMF #2-3.)

Plaintiffs

returned on January 31, 2024, again reporting dashboard light issues, though no lights were illuminated upon presentation.

The technician inspected the wiring, found no issues, installed a replacement system and verified the vehicle was operating as intended. Plaintiffs paid nothing out of pocket, and

the warning lights did not reappear after this visit. (SUMF #4-5.)

On

September 30, 2024, Plaintiffs again presented the vehicle, reporting that its radar detection was failing to detect other cars. The technician could not verify the concern, performed no repair and verified the vehicle was operating as intended. Plaintiffs paid nothing out of pocket and reported no further radar detection issues thereafter. (SUMF #6-7.)

Plaintiffs'

three (3) visits to Van Nuys Kia (on December 19, 2023, January 31, 2024, and September 30, 2024) are the only repair presentations Plaintiffs have identified. The vehicle's dashboard warning light issue and the vehicle's radar detection issue were unrelated complaints. A legal inspection conducted on February 13, 2026 confirmed that the vehicle remained repaired and operating normally. (SUMF #8-11.)

Defendant

is a distributor of new vehicles and did not manufacture the subject vehicle. (SUMF #12-13.)

b.

Review of Plaintiffs' Submitted
Evidence

Plaintiffs

submit the following evidence in opposition to the motion:

- The

declaration of Phil Thomas, counsel for Plaintiffs;

- The

declaration of Teresa;

- Excerpts

from Teresa's deposition transcript (Exh. 1);

- Excerpts

from the deposition transcript of Jeff Richards, Defendant's expert (Exh. 2);

· Copies

of emails between counsel (Exh. 3); and

· Copies

of repair orders (Exhs. A-C).

Plaintiffs'

submitted evidence shows that on July 14, 2023, Teresa and her father Alfonso purchased a new 2024 Kia Seltos (VIN #KNDER2AA3R7504769) from Van Nuys Kia in Los Angeles. Teresa purchased the vehicle in part because it was equipped with a blind spot detector and backup camera, and she reviewed the owner's manual shortly after purchase to learn how to use these features. (SUMF #1-3.)

Within

a few months of purchase, Teresa noticed the blind spot detector was failing to alert her to vehicles in her blind spot while driving on the freeway at approximately 60 mph, causing her to attempt unsafe lane changes and fear for her safety. Around the same time, the backup camera also failed to function, including in a grocery store parking lot with pedestrians present, occurring four or five times before she could bring the vehicle in. (SUMF #4-5.)

Teresa

brought the vehicle to Van Nuys Kia on December 19, 2023, reporting both issues. Teresa does not know what work, if any, was performed, but the repair order indicated that the technician found code C181887, discovered connector ICU-A on the fuse box was not fully connected, applied stabilant 22 and secured the connection, (SUMF #6-7.)

Both

problems recurred within a few days.

Teresa returned to Van Nuys Kia on January 31, 2024, with no dashboard lights illuminated. The repair order reflects that a technician found the same code on a second visit for the same concern, replaced the left rear radar sensor, performed BSD radar calibration and completed a 21-mile road test verifying repairs. (SUMF #8-9.)

The

blind spot detector problem recurred again after several months, and Teresa

returned to Van Nuys Kia on September 30, 2024, again with no dashboard lights illuminated. The repair order indicates that no active codes were found, the system appeared to be working as designed during an extended road test and no repairs were performed. (SUMF #10-11.)

Teresa

was never provided a rental or loaner vehicle by Kia or Van Nuys Kia during any period the dealership kept the vehicle. (SUMF #12.)

On

May 22, 2026, Plaintiffs noticed the deposition of Defendant's expert Jeff Richards for May 27, 2026. The deposition could not proceed because Defendant failed to provide Richards' expert file with sufficient time for Plaintiffs' counsel to prepare, and Defendant has since provided no available dates for the deposition. (SUMF #13.)

c.

The Court will not deny the motion on procedural grounds.

Plaintiffs

argue the Court must deny the motion on procedural grounds because Defendant filed its motion on April 7, 2026, about 73 days before the then-trial date of June 19, 2026. Plaintiffs cite statutes requiring that a motion for summary judgment be served on all parties 81 days before the hearing date and must be heard no later than 30 days before trial. See Code Civ. Proc., § 437c (a)(2)-(a)(3).

Plaintiffs

are conflating two (2) separate statutory requirements. The statute requires that a motion for summary judgment must be served on all parties 81 days before the hearing date. Here, the motion was served via email on April 7, 2026. The hearing date is July 2, 2026, which is 86 days after April 7, 2026. This satisfies the requirement that the motion be served 81 days before the hearing date, plus at least two (2) additional days for electronic service. See Code Civ. Proc., §§ 437c (a)(2), 1005.

Separately,

a motion for summary judgment may not be heard within 30 days of trial unless the Court finds good cause to do so.

Whereas other statutes tie deadlines to the date originally set for trial (e.g., discovery cut-offs), the summary judgment statute does not specify that the deadline is tied to the original trial date. The statute merely states that the motion shall be heard 30 days before trial. See Code Civ. Proc., § 437c (a)(3). Here, the motion is set for hearing on July 2, 2026, which is at least 30 days before the currently-set trial date of August 3, 2026.

d.

The motion is denied as to Plaintiffs' first cause of action for breach of express warranty in the FAC.

Defendant

moves for summary adjudication as to Plaintiffs' first cause of action for breach of express warranty in the FAC.

"A plaintiff pursuing an action under the Song-Beverly Act has the burden to prove the following elements: (1) the product had a defect or nonconformity covered by the express warranty; (2) the product was presented to an authorized representative of the manufacturer for repair; and (3) the manufacturer or its representative did not repair the defect or nonconformity after a reasonable number of repair attempts." *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 798-799 (Robertson); see also Civ. Code, § 1793.2(d)(1) ("if the manufacturer or its representative in this state does not service or repair the goods to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer").

Per

the statute's requirement that a manufacturer was unable to repair a defect or nonconformity to warranty after a reasonable number of repair attempts, "[a]ttempts' is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle." *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 (Silvio). "[A]t a minimum there must be more than one opportunity to fix the nonconformity." *Robertson*,

supra, 144 Cal.App.4th at p. 799.

Defendant argues

Plaintiffs' breach of express warranty claim fails because Plaintiffs presented their vehicle just once as to each issue for which the vehicle was presented. Although undisputed evidence shows that Plaintiffs presented the vehicle to Van Nuys Kia on three (3) separate occasions (December 19, 2023, January 31, 2024, and September 30, 2024), Defendant argues that none of those three (3) visits were to address the same nonconformity.

In support of its position, Defendant cites the fact that Plaintiffs presented the vehicle for different dashboard alerts on those three different dates.

In opposition to the motion, Plaintiffs present evidence that on all three (3) occasions they complained to Van Nuys Kia that the vehicle's blind spot lights were not working. On at least the December 19, 2023 and January 31, 2024 visits, Van Nuys Kia verified the concern and found error code C181887. Per repair orders produced on those first two visits, Van Nuys Kia was able to correct the issue before returning the vehicle to Plaintiff. On the third visit (completed on October 23, 2024), Plaintiff presented the vehicle to Van Nuys Kia with a similar complaint regarding blind spot radar, but Van Nuys Kia was unable to verify the problem. (See Teresa decl., ¶¶ 8-16.)

The

Court rejects Defendant's position that Plaintiffs' breach of express warranty claim fails merely because Plaintiffs' several visits addressed different components of the blind spot detector system.

On the first, second, and third visits, Plaintiffs complained of malfunctioning blind spot light and radar systems. That Plaintiffs characterized the issue slightly differently on the first and second visits ("blind spot lights aren't working" on December 19, 2023, vs. "blind spot lights aren't working. Also back up collision warning sensor is not working" on January 31, 2024) does not show that the blind spot detector issues are entirely distinct.

Plainly,

Plaintiffs presented their vehicle for a blind spot light malfunction on three (3) separate occasions. Regardless of

whether the issue was illuminating different dashboard alert lights on the different dates on which Plaintiffs presented the vehicle to Van Nuys Kia, Plaintiffs were clearly re-presenting the vehicle due to the same malfunctioning system. That Plaintiffs attest Defendant was allegedly unable to fix the blind spot system after at least two (2) attempts is sufficient to at least raise a triable fact issue as to whether Plaintiffs have a breach of express warranty claim. See *Silvio*, supra, 109 Cal.App.4th at p. 1208 (statute requires that manufacturer have at least 2 opportunities to conform vehicle to warranty).

As to Defendant's position that Plaintiffs have no breach of express warranty claim because the repair order dated October 23, 2024 (for a service appointment that originated on September 30, 2024) indicates that Van Nuys Kia could not verify an ongoing issue with the blind spot radar system, Teresa's testimony indicates that the issue persisted after Plaintiffs previously received the vehicle back from Van Nuys Kia on January 31, 2024. (See Teresa decl., ¶ 14.) The conflicting accounts between Teresa and Van Nuys Kia as to whether the blind spot system error persisted on October 23, 2024, is sufficient to raise a triable fact issue as to Plaintiffs' breach of express warranty claim.

The motion is denied as to Plaintiffs' first cause of action for breach of express warranty in the FAC.

e.
The motion is denied as to Plaintiffs' second cause of action for breach of implied warranty in the FAC.

Defendant moves for summary adjudication as to Plaintiffs' second cause of action for breach of implied warranty in the FAC.

"[A] breach of the implied warranty of merchantability means the product did not possess even the most basic degree of fitness for ordinary use." *Mocek v. Alfa Leisure, Inc.* (2003) 114 Cal.App.4th 402, 406. The necessary elements for breach of the implied warranty of merchantability in violation of the Song-Beverly Act are: (1) the plaintiff bought a new or used vehicle from

the defendant; (2) at the time of the purchase the defendant was in the business of selling consumer goods to retail buyers or manufacturing consumer goods; (3) the vehicle was not of the same quality as those generally acceptable in the trade or was not fit for the ordinary purposes for which the goods are used; (4) plaintiff was harmed; and (5) the defendant's breach of implied warranty was a substantial factor in causing plaintiff's harm.¿ CACI #3210.¿

Defendant argues that it cannot be liable for breach of implied warranty because Defendant is a vehicle distributor, not a vehicle manufacturer. The Court disagrees.

"If express warranties are made by persons other than the manufacturer of the goods, the obligation of the person making such warranties shall be the same as that imposed on the manufacturer under this chapter." Civ. Code, § 1795. An express warrantor who is not a manufacturer opts into the Song-Beverly Act, including its implied warranty provisions, by making an express warranty. See *Mega RV Corp. v. HWH Corp.* (2014) 225 Cal.App.4th 1318, 1331 (Mega RV).

The Court agrees with Plaintiffs that the analysis in *Mega RV*, *supra*, 225 Cal.App.4th at pp. 1334-1335 regarding how component manufacturers cannot avoid a breach of implied warranty claim merely because they did not "manufacture" the final product when they also issued an express warranty compels the same conclusion with respect to vehicle distributors who also issue an express warranty. Given that Defendant's sale of the vehicle to Plaintiffs was accompanied by an express warranty, the sale was also accompanied by an implied warranty. Defendant cannot defeat Plaintiffs' breach of implied warranty claim merely because Defendant is in the business of distributing rather than manufacturing vehicles.

Defendant makes no other arguments in support of its motion to summarily adjudicate Plaintiffs' second cause of action for breach of implied warranty. The motion is denied as to Plaintiffs' second cause of action for breach of implied warranty in the FAC.

V.

CONCLUSION

Defendant Kia
America, Inc.'s motion
for summary judgment or, alternatively, for summary adjudication as to issues
in Plaintiffs' First Amended Complaint is DENIED.

Plaintiffs are ORDERED
to give notice.

DATED: July 2, 2026

Lee
Arian

Judge
of the Superior Court